

Meena Kumari vs Vijay Kishan Poddar on 29 November, 2024

IN THE COURT OF MS. PREETI AGRAWAL GUPTA,
DISTRICT JUDGE (COMMERCIAL COURT)-01,
NORTH WEST, ROHINI, NEW DELHI

"CATEGORY - MORE THAN 5 YEAR OLD CASES"

CS (COMM) No. 195/2019
CNR NO.DLNW010065462019

MS.MEENA KUMARI
Through her Attorney
Mr. Anil Kumar
358, Third Floor, Tarun Enclave,
Opp. Kali Mata Mandir, Pitamura,
Delhi-110034.

Vs.

MR VIJAY KISHAN PODDAR
F-96,/97, Patel Nagar,
ghaziabad, Utta Pradesh,
Pin-201001.

SUIT FOR RECOVERY OF Rs. 5,00,000/- (RUPEES FIVE
LAKH ONLY) ALONGWITH PENDENTE LITE & FUTURE
INTEREST @ 18 % P.A. FROM 01.07.2017 TILL
REALISATION.

Date of institution of Suit :
Date of Assignment to this court :
Date of hearing of final argument : 19.11.2025
Date of Judgment :

CS (Comm.) No.195/2019

Ms. Mena Kumari Vs. Mr. Vijay Kishan Poddar.

JUDGMENT

1. By way of present judgment I shall conscientiously adjudicate upon the Suit of plaintiff for Recovery of Rs.5,00,000/- alongwith interest @ 18% per annum pendentlite and future, from the date of filing of the suit till its realization with costs of the Suit.

2. As derived from the pleadings, the concise facts of the plaint are being summarised hereunder.

2.1 The Plaintiff is an individual, who has authorised her husband Mr. Anil Kumar (Anil Goyal) vide Special Power of Attorney dated 13.03.2019, to represent her in this case. Her husband, was running a business of timbers, supplied timber regularly to the defendant's firm, which owes an outstanding amount of approximately Rs.15,00,000/-.

2.2 The defendant, engaged in business transactions with the plaintiff's husband's firm, M/s Anil Timbers Private Limited (registered at House No. 358, 3rd Floor, Tarun Enclave, Pitam Pura, New Delhi 110034), acknowledged liability for timber supplies. However, lacking availability of funds in his firm's account, the defendant issued two personal cheques from his United Bank of India, Ghaziabad account, dated 17.09.2018 and 19.09.2018 (cheque nos. 429223 and 429224) for Rs.1,00,000 and Rs. 4,00,000/-, respectively, in favor of the plaintiff, Meena Kumari, to repay the debt.

CS (Comm.) No.195/2019 Ms. Mena Kumari Vs. Mr. Vijay Kishan Poddar. Digitally signed by PREETI PREETI AGRAWAL AGRAWAL GUPTA Date:

GUPTA 2024.11.30 16:12:13 +0530 (PREETI AGRAWAL GUPTA) District Judge
(Commercial Court)-01 North-West/Rohini/New Delhi.

29.11.2024 2.3 The plaintiff initially deposited the cheques on 20.09.2018 with AU Small Finance Bank, Rohini Branch, and later on 05.10.2018, but both attempts were returned due to insufficient funds. After informing the defendant, the cheques were redeposited on 05.12.2018 with Keshav Sahkari Bank, Rohini, but were again returned for the same reason, as noted in the cheque return memo dated 06.12.2018, received on 09.12.2018. 2.4 After the cheques were returned, the plaintiff's husband attempted to resolve the issue via telephone but failed. Left with no other recourse, the plaintiff sent a Legal Notice through her Advocate on 27.12.2018, demanding payment of Rs.5 Lakhs within 15 days. 2.5 The meeting between the plaintiff and defendant took place at the plaintiff's residence within this Court's jurisdiction. The cause of action, including the dishonoured cheques and business transactions between the plaintiff's husband's firm and the defendant, also arose within this jurisdiction. Thus, this Hon'ble Court has territorial jurisdiction over the matter. 2.6

The matter was referred to the Delhi Legal Services Authority for pre-institution mediation on 16.04.2019 but somehow matter could not be settled and The Hon'ble Secretary, North-West, DLSA, Rohini Courts, issued 'Non-Starter Report' on 01.07.2019. It is pertinent to note that after filing of Suit the matter was again referred to DLSA, North-West, for fresh report of pre-institution mediation in view of earlier Non-Starter Report dated 01.07.2019 citing reason 'Petitioner not interested in Mediation'. Thereafter, on fresh reference, subsequent 'Non-Starter Report' dated 28.08.2019 was issued during the pendency of the Suit, wherein the Mediation CS (Comm.) No.195/2019 Ms. Meena Kumari Vs. Mr. Vijay Kishan Poddar. Digitally signed by PREETI PREETI AGRAWAL AGRAWAL GUPTA Date:

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29.11.2024 did not fructified with the report 'Respondent not appeared despite final notice'. Accordingly, the Suit filed by the plaintiff. 2.7 It is averred that the present recovery suit is filed within the limitation period under the Limitation Act, 1963. The cause of action arose from business transactions in 2016 and 2017, followed by the defendant issuing cheques on 17.09.2018 and 19.09.2018 in favour of the plaintiff duly acknowledging the debt. It further arose on 20.09.2018, 05.10.2018 and 05.12.2018 when the cheques were not encashed on presentation and arose again on 27.12.2018, on which date, Legal Notice was issued. Plaintiff claims that cause of action is still substituting and continuing. Hence, the present Suit.

3. The crystalised facts in defence and contest by defendants, as averred in the Written Statement, are as under.

3.1 As per the averments in the Written Statement, the suit of the plaintiff has been outrightly denied on merits. Defendant averred that the suit of the plaintiff is absolutely false and based on frivolous grounds. As averred in the written statement, there were business relations between the defendant company namely M/s Regal Trading Private Limited and company of the plaintiff's husband Sh. Anil Goel, namely M/s Anil Timber Private Limited. Both companies had healthy business relationships between 2016 to 2019 and there were no balance payments due from the defendant upto 2019. On 19.02.2020, the plaintiff, Meena Kumari, became Director of the company, as per the MCA website. However, this fact has been concealed in the amended plaint filed on 27.02.2020, in which, Digitally signed by CS (Comm.) No.195/2019 Ms. Meena Kumari Vs. Mr. Vijay Kishan Poddar. PREETI PREETI AGRAWAL GUPTA GUPTA Date:

2024.11.30 16:12:37 +0530 (PREETI AGRAWAL GUPTA) District Judge (Commercial Court)-01 North-West/Rohini/New Delhi.

29.11.2024 amended plain allowed vide orders dated 06.01.2021, as regards addition of address of company of plaintiff's husband in the averments of the plaint.

3.2 It is denied that the defendant issued two cheques in favour of the plaintiff, from the defendant's account against liability of his company towards the plaintiff's husband's company. However, these two cheques were issued as business security only when the business started between the two companies in the year 2016. The cheques were submitted for clearance, without the prior consent or knowledge of the defendant. The defendant only became aware after receiving the plaintiff's Legal Notice dated 27.12.2018 regarding the dishonourment of cheques. The defendant did not receive any response despite contacting the plaintiff's husband to enquire about the deposit of security cheques without any information to the defendant.

3.3 M/s Anil Timber Pvt. Ltd. filed a legal Suit against the defendant in the Court of Additional Civil Judge (Senior Division), Rajpura, on 09.01.2019, bearing Civil Suit No. 27/2019, for the recovery of Rs 5,72,550/-. The case was settled through a compromise, and the Suit was dismissed as withdrawn on

20.04.2019, with the settlement signed by Sh. Rajesh Ahuja (Power of Attorney for M/s Anil Timber Pvt. Ltd.) and order was duly signed by Ms.Suman Pathak, Ld. Presiding Officer, Lok Adalat, Rajpura (PBO316). M/s Regal Trading Pvt. Ltd. had cleared all pending dues between 06.02.2019 to 12.04.2019, before withdrawing the case on 20.04.2019.

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2024.11.30 16:12:42 +0530 (PREETI AGRAWAL GUPTA) District Judge (Commercial Court)-01 North-West/Rohini/New Delhi.

29.11.2024 3.4 It is denied that the defendant didn't appear before Hon'ble Secretary North-West, DLSA, Rohini Courts. It is submitted that the Notices were issued by the DLSA on 16.04.2019, 04.05.2019, and 11.07.2019, with the last appearance date for mediation being 29.07.2019. However, defendant already filed an Authority Letter on 01.07.2019 and a statement in the mediation process. The Certificate of 'Non-Starter Report' dated 01.07.2019 indicates malicious practice by the plaintiff. 3.5 The plaintiff has failed to submit complete and true information before the Court itself. It is averred that the plaintiff has filed the present case for dishonoured security cheques despite a Settlement arrived at before Lok Adalat in Rajpura and the final payment of all dues between the parties in the year 2019 itself, with a promise to return the dishonoured cheques. It is prayed that the plaintiff's Suit be dismissed with exemplary costs, as the same has been filed solely to harass the defendant and extort money through misuse of the security cheques and extend baseless threats of legal consequences.

4. Replication was also preferred by the plaintiff to the Written Statement, wherein contents of the plaint have been reiterated and the averments and allegations in the written statement have been denied. It has been further been reiterated that the

business relations between plaintiff's husband's firm namely M/s Anil Timber Private Limited with defendant's firm namely M/s Regal Trading Private Limited, were adversely affected due to non-payment by defendant, leading to multiple litigations. It is alleged that defendant Digitally CS (Comm.) No.195/2019 Ms. Mena Kumari Vs. Mr. Vijay Kishan Poddar. signed by PREETI AGRAWAL AGRAWAL GUPTA GUPTA Date:

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29.11.2024 has not come with clean hands and has concealed material facts. It is admitted that the plaintiff became a Director of M/s Anil Timber Private Limited on 19.02.2020, however, her appointment is irrelevant to the present case.

4.1 Presentation of alleged cheques, without knowledge/consent of the defendant is vehemently denied. It is further submitted that the defendant deliberately never answered the legal notice dated 27.12.2018. It is asserted that the claim of the plaintiff is legally sustainable and recoverable against the defendant. 4.2 In response to the settlement recorded before Ld. Presiding Officer, Lok Adalat, Rajpura as on 20.04.2019, it is the case of the plaintiff that the Suit in which settlement was arrived at was pending between different parties. The Plaintiff's Counsel in the past had sent one Notice under section 8 of the Insolvency and Bankruptcy Code on 24.12.2018 and after which, the Defendant had immediately/promptly made a payment of Rs.8,28,246/- to M/s Anil Timbers Private Limited, the plaintiff's husband's firm. 4.3 It is categorically denied that defendant cleared all pending dues between 06.02.2019 to 12.04.2019 before withdrawal of the case on behalf of the firm of the husband of the plaintiff, on 20.04.2019, with the allegation that the ledger relied upon by the defendant with its Written Statement, is wrong and incorrect.

Defendant did not reply to the legal notice dated 27.12.2018, thereby admitting its liability.

4.4 It is averred that the settlement of one case does not absolve the defendant from pending dues, recoverable/outstanding payments against other transactions. It is denied that the husband of CS (Comm.) No.195/2019 Ms. Mena Kumari Vs. Mr. Vijay Kishan Poddar. Digitally signed by PREETI PREETI AGRAWAL AGRAWAL GUPTA Date:

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29.11.2024 the plaintiff received any settlement amount against the Lok Adalat Settlement in another legal case which was settled on 20.04.2019 at Rajpura.

5. On completion of pleadings, following issues were arrived at to be adjudicated upon by the Court:

1. Whether plaintiff is entitled to recover Rs.5,00,000/- from defendant? OPP.

2. Whether plaintiff is also entitled to compounded interest @ 18% per annum from 01.07.2017 till the actual realization? OPP

3. Relief.

6. In exercise of power u/o. XV A Rule 6 (o) and (p) CPC, Court appointed Local Commissioner Mr. Ram Kishan Rustagi, Advocate, who has recorded the evidence in this matter and filed his report of compliance.

7. Plaintiff in support of its case got examined its Power of Attorney holder (husband) namely Sh. Anil Goyal, as PW1, who tendered his evidence by way of affidavit Ex.PW1/A bearing his signatures at Point A and Point B. By way of affidavit of chief- examination, the plaintiff witness has deposed as per the averments in the plaint and has relied upon documents, detailed as under:-

SL NO.	DOCUMENT(S)
1.	SPA dated 13.03.2018 executed by Ms. Meena
CS (Comm.) No.195/2019	Ms. Mena Kumari Vs. Mr. Vijay Kishan Poddar.

(PREET

District Judge (Commercial Court)-01 North-West/Rohini/New Delhi.

29.11.2024 Kumari in favour of Sh. Anil Goyal, notarised on 13.05.2019.

2. Original Cheques: EX.PW-1/2

-Bearing no.429223 dt.17.09.2018 for Rs.1 lakh (Colly) issue by Vijay Kishan Poddar in fvour of Meena Kumari drawn on Ghaziabad Branch of United Bank of India.

-Bearing no.429224 dt.19.09.2018 for Rs.4 lakh issued by Vijay Kishan Poddar in fvour of Meena Kumari drawn on Ghaziabad Branch of United Bank of India.

3. Cheque Returning Memo dated 06.12.2018 Mark-A pertaining to Cheques No.429223 and 429224. (Colly.) Mentioned in affidavit as Ex.PW-1/3 (Colly)

4. Legal Notice dated 27.12.2018 alongwith postal Ex.PW1/4 receipt.

5. Tracking report of receipt of Legal Notice Mark-B

6. Non Starter report issued by DLSA, North, West, Ex.PW1/5 dated 01.07.2019

8. The sole plaintiff witness PW1 namely Sh. Anil Goyal, has been cross-examined by Id. Counsel for the defendant, at length. During cross-examination, PW1 was confronted with Ex.PW1/A, as regards the deposition of the witness regarding the execution of Special Power of Attorney in favour of the deponent stated to be on 13.03.2019. However, the confronted document i.e. SPA Ex.PW1/1, reflects the date as 13.03.2018. PW-1 explained that the claimed outstanding amount against the total supply to the defendant firm was pertaining to M/s Shri Narayani Trading Co., Ghaziabad, but failed to disclose the nature of constitution of the said firm. He deposed that there were business transactions between M/s Shri Narayani Trading Co., Ghaziabad and M/s Anil Timbers Pvt. Ltd., but failed to rely CS (Comm.) No.195/2019 Ms. Mena Kumari Vs. Mr. Vijay Kishan Poddar. PREETI AGRAWAL AGRAWAL GUPTA Date:

GUPTA 2024.11.30 16:15:02 +0530 (PREETI AGRAWAL GUPTA) District Judge
(Commercial Court)-01 North-West/Rohini/New Delhi.

29.11.2024 upon any documents in this regard. On explanation sought for issuance of the alleged cheques by the defendant in favour of the plaintiff, PW1 deposed that owing to good business relations between the plaintiff and defendant, the cheques were accepted in the name of the plaintiff from defendant's personal account against the dues of the firm of the defendant namely M/s Shri Narayani Trading Co., Ghaziabad. PW1 denied that the two cheques in question Ex.PW1/2 (Colly.) were delivered to the deposing witness in 2016, as a security, at the time of commencement of business. PW1 admitted that he had not filed the alleged Notice dated, stated to have been issued upon the defendant, under Section 8 of the Insolvency and Bankruptcy Code, on 24.12.2018. PW1 categorically deposed that the present case was the only case pending between the plaintiff and the defendant. PW1 failed to recall if the case at Rajpura, which was settled in the Lok Adalat, was between the plaintiff and the defendant or not. PW-1 deposed that the factum of return of cheques was a matter of record vide documents tendered as Mark-A. PW-1 could not recall the duration of business transactions between M/s Shri Narayani Trading Co., Ghaziabad and M/s Anil Timbers Pvt. Ltd. PW1 was asked, if there was a personal meeting between the plaintiff and the defendant in relation to the business, which was answered in negative by answering witness. PW1 categorically deposed that there was no meeting between the plaintiff and the defendant at the time of handing over of cheques in her favour, by the defendant. He, however, denied that the deposition of PW1 was false. Plaintiff did not examine any other witness and the

plaintiff's evidence was closed.

PREETI CS (Comm.) No.195/2019 Ms. Mena Kumari Vs. Mr. Vijay Kishan Poddar. AGRAWAL
Date:

GUPTA 2024.11.30 16:15:08 +0530 (PREETI AGRAWAL GUPTA) District Judge
(Commercial Court)-01 North-West/Rohini/New Delhi.

29.11.2024

9. In defence evidence, defendant examined himself as DW1 and tendered his
evidence by way of affidavit Ex.DW1/A bearing his signatures at Point A and Point B.
In his chief-

examination, the averments in the Written Statement have been reiterated by way of his deposition,
in support of his defence.

10. By way of affidavit of chief-examination Ex.DW1/A, the defendant has failed to place reliance on
any of the documents that were filed by defendant with its Written Statement. Accordingly, the
documents that were filed by the defendant with its Written Statement have not been tendered in
evidence, by the deposing witness/defendant.

11. In cross-examination of the defendant, defendant deposed that he was acquainted with Mr. Anil
Goyal since 2016 and admitted that his company M/s Regal Trading Private Limited had business
relations with M/s Anil Timbers Pvt. Ltd., regarding timber business since 2016 and that the
payments were made in the course of business from time to time, on credit basis, with no fixed
payment terms. The witness was confronted with the two cheques bearing no. 429223, dated
17.09.2018, for a sum of Rs.1,00,000 and cheque no.429224 dated 19.09.2018 for a sum of
Rs..4,00,000/-, collectively tendered on record as Ex.PW1/2, to which DW1 admitted the issuance
of the two cheques but explained that the same were issued for security purposes to Sh. Anil Goyal,
husband of the plaintiff and further deposed that the two cheques were issued on behalf of his CS
(Comm.) No.195/2019 Ms. Mena Kumari Vs. Mr. Vijay Kishan Poddar. PREETI AGRAWAL
AGRAWAL Date:

GUPTA 2024.11.30 16:16:31 +0530 (PREETI AGRAWAL GUPTA) District Judge
(Commercial Court)-01 North-West/Rohini/New Delhi.

29.11.2024 company M/s Regal Trading Private Limited. DW1 deposed that that he
was not able to recall the date of issuance of cheques but testified that they were
issued as security during the course of business with Mr. Anil Goyal and failed to
recollect if both the cheques were given at the same time or at different points of
time. DW1 identified his signatures on the two cheques at Point A and also admitted
his handwriting in the name of the plaintiff 'Ms.Meena Kumari' on the cheques at
Point B. DW1 categorically stated that he himself did not fill the dates on the cheques

at Point C. The witness was further confronted with the two cheques which displayed the date of print of the cheques as '16.08.2018', which question was denied by the defendant.

12. DW1 deposed that he had already made the entire payment of outstanding balance of M/s Regal Trading Private Limited and has sought for return of the cheques from the plaintiff, who failed to deliver them back to him. The witness denied the suggestion that he issued the cheques in discharge of the liability in the year 2018 and that the business relations between parties continued till 2019. He admitted that no notice or letter was issued by the defendant to the plaintiff or her husband, for return of the cheques, after alleged complete payment by M/s Regal Trading Private Limited. DW1 deposed that the cheques were given from his personal account in favour of wife of plaintiff, as such requested by the husband of the plaintiff. DW1 failed to recall if there was specific mention of the two cheques in question in the Settlement as such arrived at in the Lok Adalat at Rajpura on 20.04.2019. DW1 failed to CS (Comm.) No.195/2019 Ms. Mena Kumari Vs. Mr. Vijay Kishan Poddar. PREETI AGRAWAL GUPTA Date:

GUPTA 2024.11.30 16:16:38 +0530 (PREETI AGRAWAL GUPTA) District Judge (Commercial Court)-01 North-West/Rohini/New Delhi.

29.11.2024 recall if the two cheques in question, were delivered to the plaintiff's husband. During further deposition, DW1 testified that he did not have any relations with M/s Shri Narayani Trading Co., Ghaziabad or any knowledge about its constitution or any business relations between M/s Anil Timbers Private Limited and M/s Shri Narayani Trading Co., Ghaziabad. The witness was questioned regarding the name of Directors of M/s Regal Trading Private Limited as on 11.07.2019, which were disclosed to be himself, one Sh. Jai Kishan Poddar and another Director namely Sh Bishwajeet Chakorborty.

DW1 denied any liability towards the plaintiff or towards the firm of the plaintiff's husband. No further defence witness was examined in defence and DE was thereby closed.

13. Arguments on behalf of the parties have been heard at length and the entire record including the pleadings have been perused. The applicable law has been duly considered. The entire evidence, both oral and documentary, have been appreciated. Issue- wise findings are being discussed hereunder:-

ISSUE NO.1

1. Whether plaintiff is entitled to recover Rs.5,00,000/- from defendant? OPP.

14. The present suit has been filed by the plaintiff as an individual, through her Attorney, who is her husband, vide duly proved Special Power of Attorney Ex.PW1/1. The Suit is based on CS (Comm.) No.195/2019 Ms. Mena Kumari Vs. Mr. Vijay Kishan Poddar. Digitally signed by PREETI PREETI AGRAWAL GUPTA AGRAWAL Date:

GUPTA 2024.11.30 16:16:42 +0530 (PREETI AGRAWAL GUPTA) District Judge
(Commercial Court)-01 North-West/Rohini/New Delhi.

29.11.2024 the premise that the husband of the plaintiff is a timber supplier and in regular course of business, supplied orders to the defendant's firm.

It is averred that outstanding liability of the defendant firm in favour of the husband of the plaintiff was to the tune of Rs.15,00,000/-. Suit has been filed on the foundation of two alleged cheques dated 17.09.2018 and 19.09.2018 for the sum of Rs.1,00,000 and Rs. 4,00,000/-, respectively, stated to have been issued by defendant from his personal account in favour of the plaintiff, against liability of the defendant's firm towards the firm of the husband of the plaintiff.

15. It is case of the plaintiff that a meeting took place between the plaintiff herself and defendant personally, at the residence of the plaintiff, claiming territorial jurisdiction of this Court. The cause of action alleged to have arisen when both the afore-detailed cheques were presented in the account of the plaintiff but were dishonoured on presentation and subsequently, despite issuance of legal notice dated 27.12.2018 Ex.PW1/4, the liability against the two cheques remained outstanding and recoverable by the plaintiff, hence the Suit.

16. In the Written Statement filed on behalf of defendant, issuance of the two cheques is not disputed by defendant. However, the defence has been raised that the two cheques in question were issued by defendant in the year 2016 as business security against the business between the defendant's firm and the firm of husband of the plaintiff. Defendant has denied any liability of himself or his company towards the plaintiff's husband company and has averred CS (Comm.) No.195/2019 Ms. Mena Kumari Vs. Mr. Vijay Kishan Poddar. by PREETI PREETI GUPTA AGRAWAL Date:

GUPTA 2024.11.30 16:16:49 +0530 (PREETI AGRAWAL GUPTA) District Judge
(Commercial Court)-01 North-West/Rohini/New Delhi.

29.11.2024 that a Lok Addalat Settlement was arrived at Rajpura Court between M/s Anil Timbers Private Limited, firm of the husband of the plaintiff and M/s Regal Trading Private Limited, firm of the defendant and all pending dues were cleared upto 12.04.2019, vide settlement dated 20.04.2019. It is prayed that the present suit of the plaintiff deserves dismissal for want of any outstanding liability of the defendant or his firm, towards the plaintiff or her husband's firm.

17. The parties have led their respective evidence, which has been crystalised in the former part of this order. The relevant testimonies for the purpose of adjudication of this issue, are being considered.

18. The affidavit of evidence of Sh. Anil Goyal has been filed as Ex.PW1/A, on behalf of plaintiff, as her SPA vide Ex.PW1/1. Both the cheques which form basis of the present case, have been filed in original and relied upon as Ex.PW1/2(Colly). However, the Cheque Return Memo were not tendered

in original by the witness nor any Bank witnesses have been summoned and accordingly, Bank Return Memos are not proved. Nevertheless, it is nowhere case of the defendant that the two cheques were honoured on presentation or encashed. The averments in the plaint have been more or less affirmed by way of deposition of PW1 Sh. Anil Goyal in his affidavit of chief-examination Ex.PW1/A.

19. During cross-examination of PW1, some objections were raised on the validity of the SPA in favour of PW1 as to the date CS (Comm.) No.195/2019 Ms. Mena Kumari Vs. Mr. Vijay Kishan Poddar. PREETI AGRAWAL AGRAWAL Date:

GUPTA 2024.11.30 16:16:56 +0530 (PREETI AGRAWAL GUPTA) District Judge (Commercial Court)-01 North-West/Rohini/New Delhi.

29.11.2024 of execution, which does not go to the root of the SPA as perusal of the same clearly shows that the SPA was executed by the plaintiff in favour of her husband on 13.05.2019, since the same bears stamp of notary on 13.05.2019 which matches with the date of purchase of the e-stamp of Rs.50/- on which SPA has been executed. It also correlates with the date of filing of the suit thereafter. Accordingly, SPA, on the basis of which the present Suit has been filed, is duly proved as Ex.PW1/1.

20. Court shall now examine the material aspects on the defences raised by defendant by way of cross-examination of the plaintiff witness PW1. During cross-examination, PW1 was asked to clarify the name of the firm against whom an outstanding of Rs.15 Lakh has been claimed in favour of the firm of the husband of the plaintiff, as averred in the plaint. PW1 clarified that the outstanding due in favour of his firm M/s Anil Timbers Private Limited was recoverable from M/s Shri Narayani Trading Co., Ghaziabad, which was the firm of the defendant. He, however, failed to disclose the nature of constitution of the defendant's firm. PW1 reaffirmed that there were business transactions between M/s Anil Timbers Private Limited and M/s Shri Narayani Trading Co., Ghaziabad, while admitting that there was no supporting document filed to show that such business transactions existed between the two said firms. PW1 further claimed that the two cheques in question, which are subject matter of the dispute, were issued by the defendant in the month of September 2018 to pay dues of his firm M/s Shri Narayani Trading Co., Ghaziabad to the firm of the deposing witness which was CS (Comm.) No.195/2019 Ms. Mena Kumari Vs. Mr. Vijay Kishan Poddar. PREETI AGRAWAL 16/30 AGRAWAL Date:

GUPTA 2024.11.30 16:17:05 +0530 (PREETI AGRAWAL GUPTA) District Judge (Commercial Court)-01 North-West/Rohini/New Delhi.

29.11.2024 accepted by him in favour of his wife, towards discharge of liability of M/s Shri Narayani Trading Co., Ghaziabad. PW1 categorically denied that the said cheques were issued as security cheques and failed to give any affirmative answer about the Lok Adalat Settlement or the duration of business transactions between M/s Shri Narayani Trading Co., Ghaziabad and M/s Anil Timbers Private Limited.

21. The material contradiction that emerged in the cross-examination of PW-1 pertains to the alleged handing over of cheques in question by the defendant to the plaintiff, at the residence of the plaintiff, as per averments in the plaint. During cross-examination, PW1 categorically testified that the plaintiff and defendant did not ever meet in person, for handing over of the cheques or in relation to the business. Furthermore, DW1 has tendered his defence by way of his chief-examination vide affidavit Ex.DW1/A, wherein the defence of Written Statement has been affirmed as his deposition. DW1 has asserted his defence in his testimony, denying any outstanding liability of the defendant or his firm in favour of the plaintiff or her husband or her husband's firm. Moreover, defendant has deposed that no outstanding remained between the parties after the said Lok Adalat settlement before Rajpura Court in respect of Civil Case filed by M/s Anil Timbers Private Limited against M/s Shri Narayani Trading Co., Ghaziabad.

22. During cross-examination of DW1, defendant admitted that M/s Regal Trading Private Limited was his company which had business transactions with M/s Anil Timbers Private Limited since CS (Comm.) No.195/2019 Ms. Mena Kumari Vs. Mr. Vijay Kishan Poddar. Digitally PREETI PREETI AGRAWAL AGRAWAL GUPTA GUPTA Date:

2024.11.30 16:17:14 +0530 (PREETI AGRAWAL GUPTA) District Judge (Commercial Court)-01 North-West/Rohini/New Delhi.

29.11.2024 2016 regarding timber business, on payment done by defendant's firm on credit basis. He admitted having issued both the cheques proved as Ex.PW1/2 (Colly.), though, reasserting his defence that the cheques were issued for security purpose to Sh. Anil Goyal on behalf of M/s Regal Trading Private Limited. The witness was confronted with the print date on the cheques as 16.08.2018, to confront the witness about issuance of the cheques in 2016. DW1 admitted that the cheques were not encashed with the explanation that the entire dues were cleared by his firm M/s Regal Trading Private Limited, towards the firm of husband of the plaintiff M/s Anil Timbers Private Limited vide settlement arrived at before the Rajpura Court on 20.04.2019 and categorically denied that the cheques were issued by him in respect of any liability. DW1 deposed that there was no other case pending between him and plaintiff's husband except the case with was settled at Rajpura Court.

23. The remaining cross-examination of DW1 is material on the aspect of admission of issuance of cheques by the defendant and delivery of the same to the plaintiff's husband, date of which, DW1 could not remember. DW1 categorically denied any relation with M/s Shri Narayani Trading Co., Ghaziabad or any knowledge about business relations between M/s Anil Timbers Private Limited and M/s Shri Narayani Trading Co., Ghaziabad. On being questioned about the constitution of M/s Regal Trading Private Limited, as on 11.07.2019, he disclosed the name of the Directors as himself, one Sh. Jai Kishan Poddar and another Director namely Sh Bishwajeet Chakorborty.

CS (Comm.) No.195/2019 Ms. Mena Kumari Vs. Mr. Vijay Kishan Poddar. PREETI AGRAWAL Date:

GUPTA 2024.11.30 16:17:23 +0530 (PREETI AGRAWAL GUPTA) District Judge
(Commercial Court)-01 North-West/Rohini/New Delhi.

29.11.2024

24. It shall be now relevant to examine the legal position pertaining to the evidentiary value of the two cheques in question, on the basis of which, the present suit has been filed. The suit is based on cheque nos. 429223 and 429224 and recovery has been claimed by the plaintiff on the basis of outstanding dues against the aforesaid two cheques in question against the defendant. The issuance of the two cheques in the name of the plaintiff with the amounts written thereon, has been admitted by defendant during his examination, however, claiming that the dates were not affixed by him thereupon.

It is admitted that the two cheques were not encashed on presentation, though, the plaintiff has failed to prove the dishonourment Memo placed on record as Mark-A, as per law. Therefore, the fact that needs to be examined by the Court is the extent of proof necessary by plaintiff on the basis of the cheques which are undisputably negotiable instrument having greater weightage and presumption about outstanding liability than any other nature of contract that may be arrived at between the parties. The special legislative enactment under the Negotiable Instruments Act, governs the criminal aspect of non-payment against the cheques in question. For the purpose of proving the criminality, the complainant has the onus to prove the case against the issuer of the cheques by proving the case, beyond reasonable doubt against the respondent. However, by way of the Civil litigation which is before this Court, the extent of proof required by the plaintiff is to the extent of establishing its case on the basis of 'preponderance of probabilities'. In this background, it may be relevant to consider the following CS (Comm.) No.195/2019 Ms. Mena Kumari Vs. Mr. Vijay Kishan Poddar. Digitally PREETI PREETI AGRAWAL AGRAWAL GUPTA GUPTA Date:

2024.11.30 16:17:32 +0530 (PREETI AGRAWAL GUPTA) District Judge
(Commercial Court)-01 North-West/Rohini/New Delhi.

29.11.2024 authorities which shall be appreciated in the backdrop of Civil nature of the present case and different standard of proof required for the Suit. However, the guidance can be derived from appreciation of the legal sanctity of the claim based on the basis of cheques.

25. In this regard, guidance can be appropriately derived from the binding judgment of Hon'ble Apex Court, in case titled 'Rohitbhai Jivanial Patel Vs. State of Gujrat', (2019) 18 SCC 106 decided on 15.03.2019, wherein it was held:-

"Para 16.....

27. Section 139 of the Act is an example of a reverse onus clause that has been included in furtherance of the legislative objective of improving the credibility of

negotiable instruments. While Section 138 of the Act specifies a strong criminal remedy in relation to the dishonour of cheques, the rebuttable presumption under Section 139 is a device to prevent undue delay in the course of litigation. However, it must be remembered that the offence made punishable by Section 138 can be better described as a regulatory offence since the bouncing of a cheque is largely in the nature of a civil wrong whose impact is usually confined to the private parties involved in commercial transactions. In such a scenario, the test of proportionality should guide the construction and interpretation of reverse onus clauses and the defendant-accused cannot be expected to discharge an unduly high standard of proof.

28. In the absence of compelling justifications, reverse onus clauses usually impose an evidentiary burden and not a persuasive burden. Keeping this in view, it is a settled position that when an accused has to rebut the presumption under Section 139, the standard of proof for doing so is that of "preponderance of probabilities". Therefore, if the accused is able to raise a probable defence which creates doubts about the existence of a legally enforceable debt or liability, the prosecution can fail. As clarified in the citations, the accused can rely on the materials submitted by the complainant in order CS (Comm.) No.195/2019 Ms. Mena Kumari Vs. Mr. Vijay Kishan Poddar. Digitally signed by PREETI PREETI AGRAWAL AGRAWAL GUPTA GUPTA Date:

2024.11.30 16:17:39 +0530 (PREETI AGRAWAL GUPTA) District Judge (Commercial Court)-01 North-West/Rohini/New Delhi.

29.11.2024 to raise such a defence and it is conceivable that in some cases the accused may not need to adduce evidence of his/ her own."

17. On the aspects relating to preponderance of probabilities, the accused has to bring on record such facts and such circumstances which may lead the Court to conclude either that the consideration did not exist or that its non-existence was so probable that a prudent man would, under the circumstances of the case, act upon the plea that the consideration did not exist. This Court has, time and again, emphasized that though there may not be sufficient negative evidence which could be brought on record by the accused to discharge his burden, yet mere denial would not fulfil the requirements of rebuttal as envisaged under Section 118 and 139 of the NI Act."

From the authority that has been laid down, strictly for the purposes of Criminal Trial U/S 138 N. I. Act, the legal position that emerges for the purpose of appreciation of this Court, while adjudicating the liability against the cheques in question, for the purpose of Civil standard of proof to prove the entitlement of the plaintiff to claim recovery against the cheques in question, it may be relevant to observe that the bouncing of a cheque is largely in the nature of a civil wrong whose impact is usually confined to the private parties involved in commercial transactions. However, the liability under the Negotiable Instrument Act, 1881, is dealt with under Criminal Jurisdiction. This Court, however, operates under Civil Jurisdiction, where the standard of proof is the 'preponderance of probabilities'. If the Plaintiff fails to prove its case based on this standard, or if the Defendant raises

a probable defence that creates doubt about the existence of a legally enforceable debt or liability, the onus shifts to the complainant. The complainant must then establish not only that the cheque was issued for the discharge of a debt or CS (Comm.) No.195/2019 Ms. Mena Kumari Vs. Mr. Vijay Kishan Poddar. Digitally signed by PREETI PREETI AGRAWAL AGRAWAL GUPTA GUPTA Date:

2024.11.30 16:17:46 +0530 (PREETI AGRAWAL GUPTA) District Judge
(Commercial Court)-01 North-West/Rohini/New Delhi.

29.11.2024 other liability but also that such debt or liability was legally enforceable.

26. The Court has now considered the law pertaining to discharge of burden of proof of the issues as relevant and applicable to the Civil Jurisdiction. In the latest binding authority of the Hon'ble Supreme Court of India, in M/s. Gian Chand & Brothers and Another v. Rattan Lal@ Rattan Singh: [2013] 3 S.C.R. 601; it has been laid down:-

1.3. It is well settled principle of law that a person who asserts a particular fact is required to affirmatively establish it. The burden of proving the facts rests on the party who substantially asserts the affirmative issues and not the party who denies it but the said principle may not be universal in its application and there may be an exception thereto.

The various aspects of proving the facts of a case and exceptions, if any, have been duly considered by Hon'ble Supreme Court of India in Anil Rishi vs Gurbaksh Singh in Appeal (civil) 2413 of 2006 on 2 May, 2006, wherein the binding legal position has been reinforced as under :-

"Pleading is not evidence, far less proof. Issues are raised on the basis of the pleadings. Indisputably, the relationship between the parties itself would be an issue. The suit will fail if both the parties do not adduce any evidence, in view of Section 102 of the Evidence Act. Thus, ordinarily, the burden of proof would be on the party who asserts the affirmative of the issue and it rests, after evidence is gone into, upon the party against whom, at the time the question arises, judgment would be given, if no further evidence were to be adduced by either side."

CS (Comm.) No.195/2019 Ms. Mena Kumari Vs. Mr. Vijay Kishan Poddar. Digitally signed PREETI AGRAWAL AGRAWAL GUPTA GUPTA Date:

2024.11.30 16:17:52 +0530 (PREETI AGRAWAL GUPTA) District Judge
(Commercial Court)-01 North-West/Rohini/New Delhi.

29.11.2024 It has been further laid down (supra) :-

"A distinction exists between a burden of proof and onus of proof. The right to begin follows onus probandi. It assumes importance in the early stage of a case. The question of onus of proof has greater force, where the question is which party is to

begin. Burden of proof is used in three ways : (i) to indicate the duty of bringing forward evidence in support of a proposition at the beginning or later; (ii) to make that of establishing a proposition as against all counter evidence; and (iii) an indiscriminate use in which it may mean either or both of the others. The elementary rule is Section 101 is inflexible. In terms of Section 102 the initial onus is always on the plaintiff and if he discharges that onus and makes out a case which entitles him to a relief, the onus shifts to the defendant to prove those circumstances, if any, which would disentitle the plaintiff to the same."

27. Let us now consider the facts and circumstances of the present case in order to examine if the plaintiff has been able to duly discharge the burden laid upon her, at the first instance, to establish that the two cheques in question were issued by the defendant in due discharge of legal liability towards the plaintiff. In this light, appreciation of pleadings and evidence has revealed that the defendant as DW1 has duly admitted the issuance of the two cheques in question, though, he has put a defence that the two cheques were issued as Security to the husband of the plaintiff, which were issued in the name of the plaintiff, his wife. The legal position in this regard needs no further probe as the wife is duly entitled to receive such amounts as may discharge the liability of third person, towards her person. Moreover, the husband of the plaintiff Sh. Anil Goyal himself is the SPA on her behalf vide Ex.PW 1/1 and is also the sole deposing PREETI AGRAWAL CS (Comm.) No.195/2019 Ms. Mena Kumari Vs. Mr. Vijay Kishan Poddar. GUPTA GUPTA 2024.11.30 16:17:58 +0530 (PREETI AGRAWAL GUPTA) District Judge (Commercial Court)-01 North-West/Rohini/New Delhi.

29.11.2024 witness on behalf of plaintiff. It is not a matter of dispute that in case it is proved that the defendant had as legal liability to pay to Mr. Anil Goyal, the plaintiff before this Court, may be able to assert her right to recover on the basis of liability towards her husband. The other defence that the defendant raised was in respect of the purpose of issuance of cheques which he claimed were issued for security purpose on behalf of his company of which, he is a Director, namely M/s Regal Trading Private Limited and the said issuance is claimed in the year 2016. This aspect of defence also stands nullified in view of the confronted suggestion to the witness about the date of print of the two cheques in question, which is in August, 2018, clearly showing that the cheques were issued on or after the print of the date of the cheques.

28. Nevertheless, despite the admitted issuance of the two cheques by the defendant in favour of the plaintiff, does not per se establish the case of the plaintiff to prove her case as per law. Cross-examination of the plaintiff witness PW1 is relevant, wherein PW1 has claimed that the outstanding liability of Rs.15 Lakhs averred in the plaint, as recoverable from the defendant's firm, was in respect of the firm M/s Shri Narayani Trading Co., Ghaziabad. Despite specific confrontation to PW1, he failed to furnish any evidence to show any business relations/transactions, by way of presenting the Ledgers or Statement of Account, work orders or bills/invoices pertaining to the business between M/s Shri Narayani Trading Co., Ghaziabad and Mr. Anil Goyal or his firm M/s Anil Timbers Private Limited. The plaintiff witness could not recall the proprietor/partners/Directors of CS (Comm.) No.195/2019 Ms. Mena Kumari Vs. Mr. Vijay Kishan Poddar. Digitally signed by PREETI PREETI AGRAWAL GUPTA AGRAWAL Date:

GUPTA 2024.11.30 16:18:09 +0530 (PREETI AGRAWAL GUPTA) District Judge
(Commercial Court)-01 North-West/Rohini/New Delhi.

29.11.2024 M/s Shri Narayani Trading Co., Ghaziabad, nor the duration of business transactions between it and M/s Anil Timbers Private Limited. PW1 went further in his cross-examination to depose that there were good business relations between the firm of the defendant namely M/s Shri Narayani Trading Co., Ghaziabad and his firm namely M/s Anil Timbers Private Limited, owing to which the two cheques in question Ex.PW1/2 were accepted by him in due discharge of the alleged liability of the defendant firm. He further deposed that the two cheques in question were delivered to him in the month of September 2018.

29. Now, it shall be relevant to examine the testimony of DW1 in this regard. During cross-examination, DW1 who is Mr.Vijay Kishan Poddar, one of the Directors in M/s Regal Trading Private Limited, admitted business relations pertaining to timber supply between his firm M/s Regal Trading Private Limited with the firm of husband of the plaintiff M/s Anil Timbers Private Limited. During further cross-examination, DW1 further clarified that the two cheques in question Ex.PW1/2 (Colly) were issued on behalf of his company M/s Regal Trading Private Limited. The names of the Directors of M/s Regal Trading Private Limited were disclosed as himself and two other Directors as on 11.07.2019 and the defendant witness categorically denied any knowledge or relations with M/s Shri Narayani Trading Co., Ghaziabad, either directly or indirectly.

30. Upon examining the evidence on record, both vide oral testimony and by way of documents presented before the Court, the CS (Comm.) No.195/2019 Ms. Mena Kumari Vs. Mr. Vijay Kishan Poddar. Digitally signed by PREETI PREETI AGRAWAL AGRAWAL GUPTA Date:

GUPTA 2024.11.30 16:18:18 +0530 (PREETI AGRAWAL GUPTA) District Judge
(Commercial Court)-01 North-West/Rohini/New Delhi.

29.11.2024 defendant has created sufficient doubts in his defence about the issuance of two cheques in question Ex.PW1/2(Colly), in discharge of the alleged liability of M/s Shri Narayani Trading Co., Ghaziabad, in favour of M/s Anil Timbers Private Limited.

31. There is another relevant fact that has emerged from trial pertaining to an admitted settlement before the Lok Adalat at Rajpura Court, where a Civil Suit was filed by M/s Anil Timbers Private Limited against M/s Regal Trading Private Limited. It is also the admitted fact that the Lok Adalat settlement of admitted civil liability between aforesaid two firms, was arrived at vide settlement dated 20.04.2019. It is matter of record that the present Suit has been filed after the said Lok Adalat settlement before the Court at Rajpura, wherein the date of filing of the present Suit is 10.07.2019. The Cheques in question are of dated 17.09.2018 and 19.09.2018 which are dated prior of the Lok Adalat Settlement dated 20.04.2019.

32. A defence has been raised by the defendant suggesting that all legal liabilities were settled between M/s Anil Timbers Private Limited and M/s Regal Trading Private Limited and that there

were no other pending cases or dispute pertaining to any other liabilities of M/s Regal Trading Private Limited in favour of M/s Anil Timbers Private Limited. Further, defendant has denied any connection with the firm M/s Shri Narayani Trading Co., Ghaziabad. It is also the defence put forward by the defendant that after entire payment of outstanding balance of M/s Regal Trading Private Limited before Rajpura Court vide Lok Adalat Settlement dated CS (Comm.) No.195/2019 Ms. Mena Kumari Vs. Mr. Vijay Kishan Poddar. 26/30 PREETI AGRAWAL AGRAWAL GUPTA Date:

GUPTA 2024.11.30 16:18:23 +0530 (PREETI AGRAWAL GUPTA) District Judge (Commercial Court)-01 North-West/Rohini/New Delhi.

29.11.2024 20.04.2019, the plaintiff withheld the cheques and did not return the same to the defendant. This fact has been strongly disputed by the plaintiff through her deposing witness PW1 with the assertion that the two cheques in question Ex.PW1/2 (Colly) were issued in discharge of a separate liability, which was not covered in the Civil case that was settled before the Lok Adalat at Rajpura Court.

However, it continues to be a matter of confusion created by the plaintiff by way of its filing of plaint, wherein it has been averred that the cheques in question were issued by the defendant against liability of his firm, without disclosing any name of the firm. It is the case further averred by the plaintiff that the cheques in question were issued by defendant towards discharge of liability of his firm in favour of the firm of her husband namely M/s Anil Timbers Private Limited. Surprisingly, the name of the defendant's firm, first emerged during cross-examination of PW1, wherein he disclosed that the concerned firm allegedly of the defendant, for which the defendant issued the two cheques in question, was M/s Shri Narayani Trading Co., Ghaziabad.

33. As discussed herein-above, plaintiff has failed to discharge the burden to show that there were any existing business relations between M/s Shri Narayani Trading Co., Ghaziabad and M/s Anil Timbers Private Limited, by way of presenting relevant documents to this effect. Furthermore, plaintiff has also failed to establish that defendant has any connection whatsoever, with M/s Shri Narayani Trading Co., Ghaziabad. It is further relevant to observe that the earlier settlement that took place before, in a Civil CS (Comm.) No.195/2019 Ms. Mena Kumari Vs. Mr. Vijay Kishan Poddar. Digitally signed by PREETI PREETI AGRAWAL AGRAWAL GUPTA GUPTA Date:

2024.11.30 16:18:58 +0530 (PREETI AGRAWAL GUPTA) District Judge (Commercial Court)-01 North-West/Rohini/New Delhi.

29.11.2024 case before Rajpura Court, was between M/s Anil Timbers Private Limited and M/s Regal Trading Private Limited, of which, defendant is one of the Directors. There is absence any iota of evidence to decipher, if the case of the plaintiff is based on the claimed liability against the firm of the defendant which is M/s Shri Narayani Trading Co., Ghaziabad or M/s Regal Trading Private Limited. Whereas, defendant has duly rebutted the presumption of existence of liability against the two cheques in question by bringing sufficient evidence to show that he is the Director in

M/s Regal Trading Private Limited, there has been an outright denial of any connection with M/s Shri Narayani Trading Co., Ghaziabad.

34. It is further relevant to consider that though the plaintiff has averred and claimed outstanding liability of Rs.15 lakh in favour of the plaintiff's husband and against the defendant, no supporting documents have been presented to justify why the present case has been filed only for recovery of part amount and not the whole recoverable amount. It is not even clarified, if the outstanding liability claimed against the defendant is for which of the firm i.e. M/s Shri Narayani Trading Co., Ghaziabad or M/s Regal Trading Private Limited. PW1 in the witness box claimed that the outstanding liability was against M/s Shri Narayani Trading Co., Ghaziabad, without any supporting documents.

35. In the facts and circumstances, while the plaintiff discharged the initial onus of proof to show a presumptive liability against the issuance of the two cheques in question, plaintiff has Digitally signed by CS (Comm.) No.195/2019 Ms. Mena Kumari Vs. Mr. Vijay Kishan Poddar. PREETI PREETI AGRAWAL GUPTA GUPTA Date:

2024.11.30 16:19:05 +0530 (PREETI AGRAWAL GUPTA) District Judge (Commercial Court)-01 North-West/Rohini/New Delhi.

29.11.2024 failed to discharge the burden of proof to bring forward such evidence, in order to support and establish an existing liability of the defendant in favour of the plaintiff or husband of the plaintiff or firm of the plaintiff, against the two cheques in question.

36. In the aforesaid facts, circumstances and reasons given herein-above, Court is of the considered opinion that the plaintiff has failed to establish that there existed a recoverable liability in favour of the plaintiff and against the defendant, against two cheques in question proved vide Ex.PW1/2 (Colly), by discharging the necessary burden of proving its case by standard of proof, required on the basis of 'preponderance of probabilities'.

Issue no.1 is accordingly decided against the plaintiff.

ISSUE NO.2

2. Whether plaintiff is also entitled to compounded interest @ 18% per annum from 01.07.2017 till the actual realization? OPP

37. In view of the findings on issue no.1 herein-above, wherein the plaintiff has failed to prove entitlement to any recoverable principal amount in her favour and against the defendant, there is no question that arises to ascertain any interest payable by the defendant to the plaintiff, in absence of any principal recoverable amount. The issue is accordingly decided against the plaintiff.

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2024.11.30 16:19:09 +0530 (PREETI AGRAWAL GUPTA) District Judge
(Commercial Court)-01 North-West/Rohini/New Delhi.

29.11.2024

38. In absence of any affirmative proof of Issue no.1, to substantiate the very core claim of entitlement of recovery of the amount claimed against the defendant, claim of interest remains a bald assertion. Plaintiff has failed to prove his entitlement against any interest.

Accordingly, issue no.2 is decided against the plaintiff.

ISSUE NO.3

3. Relief.

39. Keeping in view the above findings, Suit for Recovery filed by the plaintiff against the defendant, stands dismissed.

40. There is no order as to costs.

41. Decree sheet be drawn accordingly.

42. File be consigned to record room, after due completion.

Announced in the open Court today Digitally signed by PREETI on this 29th day of November, 2024
PREETI AGRAWAL AGRAWAL GUPTA Date:

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(Commercial Court)-01 North-West/Rohini/New Delhi.

29.11.2024 Dictated and pronounced on 29.11.2024.

Checked, Digitally signed and uploaded on 30.11.2024.

CS (Comm.) No.195/2019 Ms. Mena Kumari Vs. Mr. Vijay Kishan Poddar. 30/30 (PREETI AGRAWAL GUPTA) District Judge (Commercial Court)-01 North-West/Rohini/New Delhi.

29.11.2024